

23TRCV01883 23TRCV01883

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-08-12

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SBA%2CM%2C08%2F12%2F2026

Source SHA-256: 5159b50a41c1b0f601dbd15f831410b529888cd14ef5991062474145af0e05db

Case Number: 23TRCV01883 Hearing Date: August 12, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Wednesday – August 12, 2026

Calendar No.

PROCEEDINGS

Kewayne

Smith, et al. v. Extended Stay America, Inc., et al.

23TRCV01883

1. Barbara B. Smith's, Guardian Ad Litem for Jayden

Ekblad-Frank, Petition for Approval of Compromise of Claim of Minor

TENTATIVE RULING

Barbara B. Smith's, Guardian Ad Litem for Jayden

Ekblad-Frank, Petition for Approval of Compromise of Claim of Minor is granted.

Background

Plaintiffs' Complaint was filed on June 12, 2023. The

Second Amended Complaint was filed on April 18, 2024. Plaintiffs allege the following facts. Pursuant to a rental agreement, Plaintiffs are tenants of a property located at 18602 South Vermont Avenue, Room 202 Gardena, California 90248. The property suffers from numerous habitability problems including toxic mold and vermin that has caused injuries to Plaintiff. Plaintiff alleges the following causes of action: 1. Negligence; 2. Breach of Implied Warranty of Habitability; 3. Breach of Covenant of Quiet Enjoyment; 4. Nuisance; 5. Intentional Infliction of Emotional Distress; 6. Negligent Infliction of Emotional Distress; 7. Collection of Rent for Untenantable Dwelling; 8. Willful Interruption of Services; 9. Violation of Los Angeles County Code Section 8.52.130 et seq.

Petition to Approve Compromise of Pending Action of
Minor

A claim by or against a minor may be settled through
compromise only with the approval of the court.

A petition for approval must be presented to the court by the minor's
guardian. CCP § 372; Probate Code Secs.
2500-2507; 3413-3605.

The court should consider the following factors: the
circumstances of the accident, particularly the facts bearing on the payor's
liability and the minor's damages; the amount of the proposed settlement; the
method of payment; the nature of the injury and the minor's current medical
status (the petition should include a recent medical report); and the amount of
attorney's fees being requested. Before
the hearing, the court should make a preliminary determination of whether the
proposed settlement and the method of payment appear reasonable in relation to
the potential liability and the nature and extent of injuries. It is especially important to determine
whether the minor's condition is permanent, and whether it is stable or likely
to worsen. The court should also make a
preliminary determination as to whether the costs, expenses, and attorneys'
fees appear reasonable.

The Court has reviewed the
petition for compromise of pending action. The Court determines that the
petition is reasonable as to the settlement amount. The Court finds that the
settlement is in the best interest of the minor. The Court finds that the costs,
expenses, and attorneys' fees are reasonable. The proposed petition for

compromise of the pending action and the proposed disposition of the proceeds of the settlement funds are hereby approved.

Thus, for the foregoing reasons, Petitioner's Petition to Approve Compromise of Pending Action of Minor is granted.

Petitioner is ordered to give notice of this ruling.